BRENDAN NGWA NFORBI
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NORTH DISTRICT OF CALIFORNIA
SAN JOSE OFFICE

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

C 26 08272 LJC

BRENDAN NGWA NFORBI,

Plaintiff,

v.

DIANA CANDELARIA, in her individual capacity; and STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity; and DOES 1 through 10, inclusive,

Defendants.

Case No. _____

COMPLAINT FOR DAMAGES AND FOR DECLARATORY AND INJUNCTIVE RELIEF

(42 U.S.C. § 1983; 28 U.S.C. §§ 2201, 2202; Ex parte Young)

(I) 14A -- PDD -- Structural Bias;
(II) 14A -- PDD -- Denial of Fair Hearing;
(III) 14A -- PDD -- Clear Absence of Jurisdiction;
(IV) Declaratory Relief;
(V) Injunctive Relief.

[DEMAND FOR JURY TRIAL]

NC

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, brings this action against Defendants DIANA CANDELARIA, in her individual capacity, and STEVE GORDON, Director of the California Department of Motor Vehicles, in his official capacity, and alleges as follows:

INTRODUCTION

1. This is a civil rights action for damages under 42 U.S.C. section 1983 against Defendant DIANA CANDELARIA, a Driver Safety Hearing Officer employed by the California Department of Motor Vehicles ("DMV"), sued in her individual capacity; and for prospective declaratory and injunctive relief under Ex parte Young, 209 U.S. 123 (1908), against Defendant STEVE GORDON, Director of the California DMV, sued in his official capacity. Acting under color of state law, Defendant Candelaria deprived Plaintiff BRENDAN NGWA NFORBI of a constitutionally protected property interest -- his Class A Commercial Driver's License (No. F7953179) -- through an administrative-per-se proceeding that was constitutionally deficient in at least three independently sufficient ways, each traceable directly to Defendant Candelaria's own written decision.

2. The underlying facts are simple, documented, and largely undisputed. On November 1, 2024, Plaintiff -- a professional commercial truck driver -- was arrested by California Highway Patrol ("CHP") officers on the shoulder of Interstate 580 East in Livermore, Alameda County, California, on a suspicion of driving under the influence that the officers' own contemporaneous dashcam recording refutes. Four days later, on November 5, 2024, the CHP itself issued a formal Penal Code section 851.6 Detention Certificate reclassifying that taking-into-custody as "a detention only, not an arrest," and releasing Plaintiff under Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint." The Alameda County District Attorney, to whom charges had been referred, declined to file any accusatory pleading. Both the arresting agency and the prosecuting authority formally repudiated the arrest as lacking any evidentiary basis.

3. Notwithstanding the Detention Certificate, the DMV proceeded with a Vehicle Code section 13353 administrative-per-se refusal-suspension hearing. That hearing took place on January 24, 2025, via Microsoft Teams, before Defendant Candelaria. On February 11, 2025,

Candelaria issued a written Notification of Findings and Decision in APS Case No. 34739340 sustaining a one-year suspension of Plaintiff's Class A Commercial Driver's License (Feb. 20, 2025 through Feb. 19, 2026), imposing a $125.00 reissue fee under Vehicle Code sections 14904 and 14906, and imposing a three-year SR-22 financial-responsibility requirement under Vehicle Code section 16430 that continues to burden Plaintiff to this day and, by its own terms, will continue through approximately February 2028.

4. Candelaria's decision is constitutionally infirm on at least three independent grounds, each of which -- standing alone -- states a claim upon which relief can be granted:

(a) STRUCTURAL BIAS. Candelaria adjudicated Plaintiff's suspension within the DMV's dual-role framework in which the same officer functions as both prosecuting advocate for the Department and adjudicator of the Department's own case. The DMV's own written Notice of Hearing Appointment (Form DS 2304) served on Plaintiff confirms the dual role verbatim: "The Hearing Officer will develop the facts and render a final decision on your matter." This structural merger of investigative, advocacy, and adjudicative functions has by the date of Plaintiff's hearing been condemned in three separate California Court of Appeal decisions, including one in which Defendant Gordon was personally named as respondent.

(b) DENIAL OF A FAIR HEARING. Candelaria refused to conduct the reasoned, evidence-based inquiry the Fourteenth Amendment requires. Presented with (i) the CHP's own section 851.6 Detention Certificate, (ii) the CHP dashcam recording in which the officers themselves identified the suspected "alcoholic beverage" as urine, and (iii) binding California Supreme Court authority in Mercer v. DMV, 53 Cal.3d 753 (1991), Candelaria issued a written decision that mentioned none of them, ratified the fabricated sworn statement of the arresting officer as if it were irrebuttable, and characterized the record as one in which "no evidence was presented to the contrary" when in fact contrary

evidence had been presented in writing and at the hearing.

(c) CLEAR ABSENCE OF STATUTORY JURISDICTION. The APS refusal framework requires, as a jurisdictional predicate, that the driver have been "lawfully arrested." Cal. Veh. Code section 13353(a)(1). By the time of the January 24, 2025 hearing, that predicate had been destroyed as a matter of law by (i) Mercer's requirement of observed volitional movement, unmet on the officers' own account; and (ii) the mandatory statutory command of Penal Code sections 849(c) and 849.5 that, upon issuance of a section 851.6 Detention Certificate, "the arrest shall not be deemed an arrest, but a detention only." Candelaria proceeded anyway, exercising adjudicative power over a subject matter that, as a matter of California law, did not exist.

5. Candelaria's structural dual role was not incidental to her decision. By the date of Plaintiff's hearing, three published California Court of Appeal decisions had squarely condemned it: California DUI Lawyers Ass'n v. DMV, 77 Cal.App.5th 517 (2022); Knudsen v. DMV, 101 Cal.App.5th 186 (2024); and Clarke v. Gordon, 104 Cal.App.5th 1267 (2024). Clarke names Defendant Gordon personally as the responsible official. Defendant Gordon has actual notice of the constitutional infirmity; he has failed to remedy it; and the framework in the form condemned by the Court of Appeal remains in operational effect, causing continuing, present adverse effects to Plaintiff -- including the ongoing SR-22 encumbrance and the ongoing commercial-driving-record consequences of the suspension -- that Ex parte Young empowers this Court to redress.

6. The consequences of Candelaria's decision have been -- and continue to be -- severe. Plaintiff is a professional Class A CDL truck driver. The one-year suspension of his commercial driving privileges immediately terminated his employment. The three-year SR-22 filing requirement continues to encumber him today; it is a punitive, high-risk financial-responsibility filing that would not exist absent Candelaria's decision, and it prevents Plaintiff from obtaining

owner-coverage insurance on a vehicle he owns. Plaintiff currently maintains California Auto Insurance Policy No. 11411043872 (Dairyland / Viking Insurance Company of Wisconsin), a California Named Non-Owner SR-22 policy with an annual premium of $281.28, in force through May 18, 2027, solely because Candelaria's February 11, 2025 decision imposes the three-year mandate.

7. This action is brought against Candelaria in her individual capacity for damages, and against Gordon in his official capacity for prospective declaratory and injunctive relief under Ex parte Young. Quasi-judicial absolute immunity, on the functional analysis the Supreme Court and Ninth Circuit require, does not shield Candelaria from suit -- she is alleged to have performed advocate and investigative functions, not merely adjudicative ones, and she is alleged to have acted in the clear absence of statutory jurisdiction under Stump v. Sparkman, 435 U.S. 349 (1978). The Eleventh Amendment does not bar the Ex parte Young claims against Gordon -- Plaintiff pleads ongoing constitutional violations with continuing, present adverse effects, including the SR-22 encumbrance that runs through approximately February 2028 and the continuing operation of the dual-role framework Gordon has been personally noticed of and has failed to reform.

8. A related civil-rights action Plaintiff has filed in this District against the CHP officers whose conduct on November 1, 2024 gave rise to the arrest -- Nforbi v. Meza-Gonzalez & Melano (N.D. Cal.) -- rests on the same dashcam recording and the same section 851.6 Detention Certificate that Defendant Candelaria refused to engage with. In a further related action already before this Court, N.D. Cal. Case No. 4:26-cv-05953-ASK (styled Newanforbi v. Serrato), United States Magistrate Judge Ambadas S. Krishnan, on June 29, 2026, granted in forma pauperis status and, on section 1915(e) screening, found the operative complaint sufficient to proceed -- concluding, on a substantially overlapping factual record, that Plaintiff's core allegations state a plausible claim. The alias relationship between Plaintiff's name in this action and the caption in those related actions is explained at paragraph 22, below.

9. Plaintiff respectfully seeks (a) compensatory and punitive damages against Defendant Candelaria; (b) attorney's fees and costs pursuant to 42 U.S.C. section 1988; (c) a declaratory judgment against Defendant Gordon that the DMV's dual-role APS framework and its treatment of the section 851.6 Detention Certificate violate the Fourteenth Amendment; and (d) a prospective injunction against Defendant Gordon vacating Plaintiff's suspension, its associated financial-responsibility burdens, and directing structural reform of the APS hearing process to comply with due process.

JURISDICTION AND VENUE

10. This Court has original subject-matter jurisdiction over Plaintiff's federal claims under 28 U.S.C. section 1331 (federal question) and 28 U.S.C. section 1343(a)(3) and (a)(4) (civil rights), because those claims arise under the Fourteenth Amendment to the United States Constitution, as enforced through 42 U.S.C. section 1983, and seek declaratory and injunctive relief under 28 U.S.C. sections 2201 and 2202.

11. This Court has personal jurisdiction over each Defendant because each is a California state officer or employee performing official state functions within the State of California, and the conduct complained of occurred and continues to have effects within California.

12. Venue is proper in the Northern District of California under 28 U.S.C. section 1391(b)(2), because a substantial part of the events or omissions giving rise to Plaintiff's claims occurred in this District. Specifically: (a) the arrest that supplied the statutory predicate for the APS refusal-suspension hearing occurred on Interstate 580 East in Livermore, Alameda County, California, within this District; (b) the CHP's Penal Code section 851.6 Detention Certificate -- the document that Candelaria refused to engage with, and whose statutory effect is central to the "clear absence of jurisdiction" claim -- was issued by the Dublin CHP Area (Alameda County),

within this District; (c) the CHP dashcam recording, likewise, was created within this District; (d) the arresting officers whose sworn statements Candelaria ratified are stationed and reside within this District; and (e) the sworn CHP Arrest-Investigation Report and DS-367 Officer's Statement that Candelaria relied on originate from the CHP Dublin Area within this District. The evidentiary center of gravity of this action, insofar as it turns on the November 1, 2024 arrest and its statutory consequences, lies in this District.

13. Venue is further proper in this District because Plaintiff has filed a related civil-rights action, Nforbi v. Meza-Gonzalez & Melano (N.D. Cal.), in this District against the CHP officers whose sworn statements Candelaria ratified. Under N.D. Cal. Civil Local Rule 3-12, the two actions concern substantially the same parties, property, transactions, and events, and it would be an unduly burdensome duplication of labor and expense (and would create a risk of conflicting results) to litigate them in different districts.

14. INTRADISTRICT ASSIGNMENT. Under N.D. Cal. Civil Local Rule 3-2(c) and (d), this action arose in Alameda County and is therefore appropriately assigned to the San Francisco Division or the Oakland Division of this Court.

PARTIES

15. Plaintiff BRENDAN NGWA NFORBI is, and at all times relevant herein was, a natural person and a resident of the County of San Joaquin, State of California. Plaintiff is a professional commercial truck driver who, at all times prior to Defendant Candelaria's February 11, 2025 decision, held a valid California Class A Commercial Driver's License (No. F7953179), with endorsements for doubles/triples and tank vehicles.

16. Defendant DIANA CANDELARIA is, and at all times relevant herein was, employed by the California Department of Motor Vehicles as a Driver Safety Hearing Officer. Candelaria

presided over Plaintiff's January 24, 2025 APS hearing (APS Case No. 34739340) and signed the February 11, 2025 written Notification of Findings and Decision. At all times relevant, Candelaria was acting under color of state law within the meaning of 42 U.S.C. section 1983 and within the course and scope of her employment as a DMV Driver Safety Hearing Officer. Candelaria is sued in her individual capacity only.

17. Defendant STEVE GORDON is, and at all times relevant herein was, the Director of the California Department of Motor Vehicles. As Director, Gordon is the state officer charged with administration and enforcement of the APS suspension scheme under Vehicle Code sections 13353 through 13389, with supervision of DMV Driver Safety Hearing Officers, and with the promulgation and implementation of the procedures under which APS hearings are conducted. Gordon is sued in his official capacity only, and solely for prospective declaratory and injunctive relief under Ex parte Young, 209 U.S. 123 (1908).

18. On information and belief, and as more fully developed in the factual allegations below, Defendant Gordon has been personally noticed of the structural constitutional infirmity of the DMV's dual-role APS framework -- most recently by his being named personally as respondent in Clarke v. Gordon, 104 Cal.App.5th 1267 (2024), decided approximately four months before Plaintiff's hearing -- and he has failed to institute corrective measures, training, or oversight adequate to prevent the recurrence of that infirmity, causing continuing constitutional injury to Plaintiff and to similarly situated Class A CDL holders.

19. The true names and capacities, whether individual, corporate, associate, or otherwise, of Defendants DOES 1 through 10 are presently unknown to Plaintiff, despite reasonable investigation. On information and belief, each fictitiously named Defendant is a DMV Driver Safety Hearing Officer, supervisor, custodian of records, or other person who: (a) participated directly in the conduct of Plaintiff's APS proceeding; (b) approved, ratified, adopted, or acquiesced in the wrongful conduct alleged herein; or (c) knew of the wrongful conduct and

failed to intervene or correct it. Each DOE Defendant is sued in his or her individual capacity for damages. Plaintiff will seek leave to amend to state the true names and capacities of the DOE Defendants when ascertained.

20. At all relevant times, each Defendant was acting under color of state law within the meaning of 42 U.S.C. section 1983.

FACTUAL ALLEGATIONS

A. Plaintiff's Class A CDL, Career, and Alias Note

21. At all times prior to the deprivation complained of in this action, Plaintiff held a valid California Class A Commercial Driver's License (No. F7953179), with endorsements for doubles/triples and tank vehicles. His CDL was his professional license and the property interest on which his livelihood as a commercial truck driver depended. He typically worked 11.5-hour shifts, five days per week, in the commercial trucking sector, earning wages of approximately $33.35 per hour for standard shifts and $50.03 per hour for premium/overtime shifts. Two days before the November 1, 2024 encounter, Plaintiff had secured new professional employment; the deprivation described below immediately terminated that employment and his ability to earn a living in his profession.

22. ALIAS NOTE. Plaintiff has, in prior court and administrative proceedings arising from the November 1, 2024 incident, appeared under the prior name variant "Brendan Ngehsi Newanforbi." That is the caption under which Plaintiff's related actions in this District and in the Eastern District of California were filed, the caption under which the DMV opened, adjudicated, and issued its written decision in APS Case No. 34739340, and the caption under which the California Highway Patrol issued the November 5, 2024 Penal Code section 851.6 Detention Certificate. "Brendan Ngehsi Newanforbi" and "Brendan Ngwa Nforbi" refer to the same

individual -- the Plaintiff in this action -- and Plaintiff has since chosen to appear under "Brendan Ngwa Nforbi." Except where quoting from a prior filing, order, or record, this Complaint uses the name "Brendan Ngwa Nforbi" throughout.

B. The November 1, 2024 Roadside Encounter

(Livermore, Alameda County, N.D. Cal.)

23. On November 1, 2024, at approximately 12:54 a.m., Plaintiff was resting in a rented gray Tesla Model Y that he had lawfully parked on the right shoulder of Interstate 580 East, just west of Isabel Avenue, in Livermore, Alameda County, California. He was fatigued and had pulled off the roadway to rest -- exactly what federal Hours-of-Service rules and CHP's own public safety guidance instruct fatigued commercial drivers to do. He was not driving. He had not been observed by any officer in volitional movement of the vehicle. He had committed no observable Vehicle Code violation.

24. Two California Highway Patrol officers -- Officer Santiago Meza-Gonzalez (Badge #023295) and Officer Jose Melano (Badge #023054), both assigned to the CHP Dublin Area within this District -- approached Plaintiff's vehicle under the guise of a welfare check. In fact, and as documented in the officers' own dashcam recording of the encounter (CHP Case No. RJ68845; duration 00:54:36-01:57:10), the officers had formed a criminal-investigative hypothesis before any welfare observation had been made. At timestamp 00:56:09, before contacting Plaintiff and while Plaintiff was asleep, Officer Melano announced on the recording: "I think it's booze."

25. Officer Melano then opened the front passenger-side door of Plaintiff's vehicle without a warrant, without consent, and without any exigent circumstance. Between timestamps 00:58:49 and 00:59:07, Officer Melano seized a cup that had been visible from outside the vehicle, smelled it, and identified its contents on the recording in unmistakable terms: "Is it

water? No this is piss. This is pee." And again, "I'm telling you it's piss. It smells like piss." The single articulable basis for the officers' investigation of Plaintiff for driving under the influence -- Officer Melano's pre-contact "I think it's booze" hypothesis -- had thus been contemporaneously dispelled by Officer Melano's own words captured on the officers' own recording.

26. Notwithstanding the dispelled predicate, the officers continued the encounter, prolonged the detention, ordered Plaintiff out of the vehicle onto uneven ground, put him through field-sobriety exercises Officer Melano himself acknowledged the ground was not suitable for, and -- after Plaintiff exercised his statutory right to decline a preliminary alcohol screening ("PAS") test that Officer Meza-Gonzalez expressly advised was voluntary ("You're not required to do this," timestamp 01:10:54) -- placed Plaintiff under arrest within eighteen seconds (timestamps 01:11:15-01:11:33). Plaintiff was transported to the CHP Dublin Area office where his blood was extracted under a warrant procured on the strength of the sworn statements described below, and thereafter booked at Santa Rita Jail in Dublin, Alameda County.

27. At no point in more than two hours of continuous dashcam audio does either officer verbalize any observation of an alcohol odor. Plaintiff is audibly captured on the recording speaking coherently and articulately -- spelling his surname on request, discussing the alternator design of the rental Tesla, explaining CDL fatigue protocols, and correctly identifying his location as Livermore -- without slurring, confusion, or disorientation.

C. The Fabricated Sworn DS-367 and CHP Arrest-Investigation Report

28. Following the arrest, Officer Meza-Gonzalez prepared, executed under penalty of perjury, and submitted (a) a DS-367 Age 21 and Older Officer's Statement (Cal. Veh. Code sections 13353, 13353.1, 13353.2, 13389) forwarded to the DMV as the statutory basis for administrative-per-se suspension proceedings; and (b) a CHP Arrest-Investigation Report, CHP

Case No. RJ68845. Both documents were submitted to the reviewing magistrate as the affidavit supporting the search warrant for the involuntary blood draw, to the DMV as the officer's statement supporting the APS suspension, and to the Alameda County District Attorney for criminal referral.

29. Each document contains material representations conclusively disproven by the dashcam recording in the CHP's own custody:

(a) "Strong distinct odor of an alcoholic beverage." The DS-367 and arrest report state Meza-Gonzalez detected a "strong distinct odor of an alcoholic beverage" from Plaintiff's breath and person. Neither Meza-Gonzalez nor Melano ever verbalizes any observation of an alcohol odor at any point in the two-hour recording.

(b) "Slurred" speech. The DS-367 characterizes Plaintiff's speech as "slurred." The dashcam records Plaintiff, in extended coherent conversation, spelling his last name letter-by-letter on request and discussing mechanical details in fluent English.

(c) "Very confused and disoriented." The arrest report states that Plaintiff "seemed very confused and disoriented." The dashcam records Plaintiff correctly identifying his location and orienting himself to the encounter without difficulty.

(d) "Beverage Present: Yes." The DS-367 contains a checkbox entry indicating an alcoholic beverage was present. The only liquid the officers found and discussed on the recording was, in Officer Melano's own words, "piss" -- urine, not a beverage.

30. These four fabrications, and the material omissions that accompany them (including the officers' contemporaneous identification of the cup's contents as urine, the express advisement that the PAS was voluntary, and the fact that no observation of driving or volitional movement

had been made), are the specific representations Defendant Candelaria adopted, ratified, and treated as effectively irrebuttable in her February 11, 2025 written decision, as more fully alleged below.

31. The related Nforbi v. Meza-Gonzalez & Melano action pending in this District pleads the officers' fabrications as violations of the Fourth and Fourteenth Amendments. Those officers' conduct is not the subject of this Complaint. It is relevant here only because Defendant Candelaria's February 11, 2025 decision rested on their sworn statement, and Candelaria's constitutional deficiency turns in part on her refusal to conduct any independent evaluation of that statement notwithstanding the objective evidence contradicting it.

32. The evidentiary chain from CHP Case No. RJ68845 (Nov. 1, 2024) to APS Case No. 34739340 (Feb. 11, 2025) is direct: the DS-367 executed by Officer Meza-Gonzalez was the statutory triggering document that opened the APS proceeding, and the same DS-367 was the document Defendant Candelaria treated as dispositive in her written decision. There is no APS proceeding without the DS-367, and no ratification of the DS-367 without Candelaria's decision.

D. The November 5, 2024 Penal Code Section 851.6 Detention Certificate

33. On November 5, 2024 -- four days after the arrest -- the CHP Dublin Area issued a formal Detention Certificate under California Penal Code section 851.6, referencing CHP Case No. RJ68845. The Detention Certificate is signed by the releasing officer (Badge #022511) and states, in mandatory statutory language, that Plaintiff's taking into custody "was a detention only, not an arrest," and that Plaintiff was released pursuant to California Penal Code section 849(b)(1) for "insufficient grounds for making a criminal complaint."

34. The Detention Certificate was in Plaintiff's possession before the January 24, 2025

APS hearing. Plaintiff placed it before Defendant Candelaria in the December 9, 2024 Notice of Response to Request for Discovery and again at the January 24, 2025 hearing itself. Defendant Candelaria did not, at the hearing or in her subsequent written decision, address the Detention Certificate on the merits.

35. The Detention Certificate is a formal, contemporaneous concession by the arresting agency itself that the arrest lacked probable cause and "insufficient grounds" existed to prosecute. It is not an inference. It is the CHP's own written statement of the legal status of Plaintiff's taking-into-custody, drafted by CHP, signed by a CHP officer, and issued on official CHP letterhead.

E. The Non-Discretionary Statutory Effect of the Detention Certificate Under California Law

36. The consequences of a Penal Code section 849(b)(1) release, followed by a section 851.6 Detention Certificate, are non-discretionary and dispositive as a matter of California law:

(a) Penal Code section 849(c) provides: "Thereafter, the arrest shall not be deemed an arrest, but a detention only."

(b) Penal Code section 849.5 provides in materially identical terms for cases in which no accusatory pleading is filed: "the arrest shall not be deemed an arrest, but a detention only."

(c) Penal Code section 851.6(a) mandates that the releasing agency "shall issue to that person a certificate . . . describing the action as a detention."

37. The APS refusal-suspension framework, on which Candelaria's decision rests, requires

a "lawful arrest" as a statutory predicate. Cal. Veh. Code section 13353(a)(1) (a person's license may be suspended if he "refuses . . . upon the request of a peace officer to submit to a chemical test after being lawfully arrested for any offense allegedly committed in violation of Section 23140, 23152, or 23154"); see Mercer v. DMV, 53 Cal.3d 753, 760-62 (1991) (refusal suspension requires lawful arrest); Music v. Dep't of Motor Vehicles, 221 Cal.App.3d 841, 850 (1990) (same).

38. By operation of the statutory language of sections 849(c), 849.5, and 851.6(a), read together with the section 13353(a)(1) predicate, the "lawful arrest" predicate for Plaintiff's APS refusal suspension had, as a matter of California law, ceased to exist by the time Defendant Candelaria convened the January 24, 2025 hearing. The event at issue was, by statutory command, a detention only. There was no lawful arrest on which the section 13353 refusal suspension could be predicated. This defect is jurisdictional in the sense used by Stump v. Sparkman, 435 U.S. 349, 357 (1978): a decisionmaker acting where the statutory precondition to jurisdiction is unmet is not shielded from suit by absolute immunity.

F. The Alameda County District Attorney's Declination

39. CHP referred charges to the Alameda County District Attorney under Vehicle Code sections 23152(a), 23152(b), and 23578. The Alameda County District Attorney, having reviewed the referral, declined to file any accusatory pleading of any kind against Plaintiff. No criminal case was ever initiated arising from the November 1, 2024 incident.

40. Both the arresting agency and the prosecuting authority have therefore formally rejected the arrest as lacking evidentiary basis. This is the state of the criminal-justice record Defendant Candelaria was presented with in advance of the January 24, 2025 hearing. She sustained a one-year commercial-driver license suspension anyway.

G. The DMV APS Suspension Process and Plaintiff's Timely Written Defense

41. On or about November 1, 2024, in connection with the arrest and refusal allegations, Officer Meza-Gonzalez served Plaintiff with a DS-367 Order of Suspension and Temporary License. Under Vehicle Code sections 13353 et seq., that document commenced automatic administrative-per-se suspension proceedings, subject to Plaintiff's right to request a hearing before a DMV Driver Safety Hearing Officer.

42. Plaintiff timely requested a hearing. On December 4, 2024, the DMV issued (a) a Request for Discovery (DS 2053); (b) a Notice of Stay (DS 2030) staying the section 13353 suspension effective December 1, 2024 pending hearing; (c) a Temporary License (DS 2030A) valid from December 1, 2024 "through the outcome of hearing" -- expressly restricting Plaintiff from "driving commercially"; and (d) a Notice of Hearing Appointment (Form DS 2304, Rev. 05/2023) setting the hearing for January 24, 2025 at 9:00 a.m. via Microsoft Teams before Defendant Candelaria (Meeting ID 241846391884; Conference ID 159660245).

43. The Temporary License's commercial-driving restriction imposed an immediate pre-adjudicative deprivation of Plaintiff's commercial-driving privilege regardless of hearing outcome -- itself a constitutionally significant burden that intensified the need for a full, fair, and neutral post-deprivation hearing.

44. The DMV's own Notice of Hearing Appointment (Form DS 2304) confirms, in writing, the structural dual role central to Count I of this Complaint. The document states, verbatim: "The Hearing Officer will develop the facts and render a final decision on your matter." That single sentence, in the DMV's own printed form served on every APS respondent, admits the merger of investigative, advocacy, and adjudicative functions that three separate California Court of Appeal decisions had already condemned by the time Plaintiff received it.

45. On December 9, 2024, Plaintiff timely submitted to the DMV a formal "Notice of Response to Request for Discovery -- Personal Statement," a five-page statement of facts and defense. That statement identified the CHP dashcam evidence, the fabrications in the DS-367, the Detention Certificate, and the exculpatory facts on the officers' own recording. It cited, among other binding authorities: Mercer v. DMV, 53 Cal.3d 753 (1991); People v. Torres, 173 Cal.App.4th 977 (2009); Wong Sun v. United States, 371 U.S. 471 (1963); People v. Medina, 6 Cal.3d 484 (1972); McDonnell v. DMV, 45 Cal.App.3d 653 (1975); Terry v. Ohio, 392 U.S. 1 (1968); Florida v. Royer, 460 U.S. 491 (1983); Brown v. Texas, 443 U.S. 47 (1979); and Brown v. Illinois, 422 U.S. 590 (1975). The DMV was on written notice of Plaintiff's constitutional and statutory defenses more than six weeks before the hearing.

46. Plaintiff also authenticated and offered into the DMV administrative record the November 5, 2024 Penal Code section 851.6 Detention Certificate; the CHP dashcam recording and a written transcript of the material portions of it; and identifying documentation of the arresting officers.

47. As of the January 24, 2025 hearing, Defendant Candelaria had before her: the DS-367; the CHP Arrest-Investigation Report; Plaintiff's timely written Notice of Response citing controlling authority; the section 851.6 Detention Certificate; the dashcam audio evidence; and Plaintiff's demeanor and testimony at the hearing. The state of the record placed the constitutional and statutory defects in the DMV's case in unmistakable relief. Candelaria proceeded to sustain the suspension anyway.

H. The January 24, 2025 APS Hearing Before Defendant Candelaria

48. On January 24, 2025, at 9:00 a.m., Defendant Candelaria presided over Plaintiff's APS hearing via Microsoft Teams. Plaintiff appeared and offered testimony under penalty of perjury. Plaintiff presented the Detention Certificate, referenced the dashcam evidence, and argued the controlling authority identified in his December 9, 2024 Notice of Response.

49. In the ordinary course of an APS refusal hearing before a neutral adjudicator, one would expect the trier of fact to (i) engage with the statutory predicate of "lawful arrest" as an initial matter; (ii) rule, on the record, on the effect of the Detention Certificate and the mandatory statutory language of Penal Code sections 849(c), 849.5, and 851.6(a); (iii) address the Mercer requirement of observed volitional movement in light of the officers' own testimony that Plaintiff was parked and asleep when they arrived; (iv) weigh the objective dashcam evidence against the sworn DS-367; and (v) address, at least briefly, the three California Court of Appeal decisions the driver had put in front of her regarding the structural framework in which she was operating.

50. Defendant Candelaria did none of those things. She proceeded through the hearing operating simultaneously as the DMV's evidence-gatherer, the DMV's advocate for admission of its documents, the ruling authority on Plaintiff's objections, and the ultimate trier of fact -- exactly the structural configuration condemned in California DUI Lawyers Ass'n, Knudsen, and Clarke v. Gordon, and exactly the structural configuration the DMV's own Notice of Hearing Appointment admits ("The Hearing Officer will develop the facts and render a final decision on your matter.").

51. The record of the hearing, its administrative transcript, and the DMV's written decision are and will remain the evidentiary basis for evaluating Defendant Candelaria's conduct. Plaintiff reserves the right to develop this record in discovery, including through the hearing transcript, DMV internal training materials, and inquiry into Candelaria's other APS decisions.

I. The February 11, 2025 Written Decision:

A Roadmap of Constitutional Failure

52. On February 11, 2025, Defendant Candelaria issued a written Notification of Findings and Decision in APS Case No. 34739340. The decision is captioned "ADMINISTRATIVE PER SE - .08% BAC Refusal." It is signed by Defendant Candelaria as "Driver Safety Hearing Officer." The decision was mailed to Plaintiff at 1455 Cat Tail Drive, Stockton, California 95204.

53. The decision sustains a one-year suspension of Plaintiff's Class A Commercial Driver's License, effective February 20, 2025 through February 19, 2026, and imposes: (a) a $125.00 reissue fee under Vehicle Code sections 14904 and 14906; and (b) a three-year proof-of-financial-responsibility (SR-22) mandate under Vehicle Code section 16430. Page 3 of the decision, immediately below the heading "DECISION" and Candelaria's signature, states verbatim: "A $125.00 reissue fee must be paid to DMV §§14904 and 14906 VC."; "You must file proof of financial responsibility as provided in §16430 VC."; and "You must maintain proof of financial responsibility for three years."

54. The three-year SR-22 mandate, on the face of Candelaria's own signed decision, runs from the date of imposition through approximately February 2028. Its continuing operation is a present, ongoing consequence of Candelaria's February 11, 2025 written decision -- not a discretionary insurance choice by Plaintiff, and not equivalent to the general "proof of financial responsibility" required of every California driver under Vehicle Code section 16020. See paragraphs 79-84, below.

55. The decision is conclusory. It does not mention the section 851.6 Detention Certificate. It does not mention Penal Code section 849(b)(1), 849(c), 849.5, or 851.6(a). It does not analyze the Mercer v. DMV requirement of observed volitional movement. It does not

address the material inconsistencies between the DS-367 and the CHP dashcam recording. It does not identify or apply any of the three California Court of Appeal decisions Plaintiff had placed before her. It states, in words directly contradicted by the record, that "no evidence was presented to the contrary" when in fact contrary evidence had been presented in writing (Plaintiff's December 9, 2024 Notice of Response, the Detention Certificate, and the dashcam transcript) and at the hearing itself.

J. Candelaria's Deliberate Refusal to Address the Detention Certificate

56. The section 851.6 Detention Certificate is not a peripheral document. It is the CHP's own written admission that the taking-into-custody was not, in law, an arrest. It goes directly to the statutory predicate of Vehicle Code section 13353(a)(1) -- indeed, it destroys that predicate. It is not a document a neutral adjudicator, presented with it, could responsibly omit from a written decision.

57. Defendant Candelaria was on written notice of the Detention Certificate before the hearing (via Plaintiff's December 9, 2024 Notice of Response) and again at the hearing itself. Candelaria's written decision does not mention the Detention Certificate. That omission is not oversight. It is a deliberate refusal to conduct the reasoned engagement with dispositive evidence the Due Process Clause requires. Goldberg v. Kelly, 397 U.S. 254, 267-68 (1970).

58. The failure is compounded by Defendant Candelaria's separate refusal to engage with the mandatory statutory command of Penal Code sections 849(c) and 849.5. Those provisions do not require weighing or interpretation. They speak in absolute terms: "the arrest shall not be deemed an arrest." Candelaria's decision proceeds as if that statutory language did not exist.

K. Candelaria's Refusal to Address

Mercer and Binding California Precedent

59. Mercer v. DMV, 53 Cal.3d 753 (1991), is the California Supreme Court's controlling decision on the arrest-predicate for section 13353 APS suspensions. Mercer holds that a lawful DUI arrest requires the officer to have observed volitional movement of the vehicle by the driver -- a requirement that goes to the substantive validity of the arrest itself. Id. at 760-62.

60. On the officers' own account, and as reflected on the dashcam recording, Plaintiff was parked and asleep when the officers first approached. No officer observed Plaintiff in volitional movement of the vehicle. The Mercer requirement was not met.

61. Defendant Candelaria's written decision does not mention Mercer. It does not distinguish Mercer. It does not analyze the observed-volitional-movement requirement. To the extent the DMV or its counsel may hereafter contend that Vehicle Code section 40300.5 (authorizing warrantless arrest for suspected DUI misdemeanor not committed in the officer's presence) supplies an alternative statutory arrest authority, that contention (i) does not appear in Defendant Candelaria's written decision; (ii) does not eliminate the section 13353(a)(1) "lawful arrest" predicate; and (iii) does not answer either Mercer's substantive volitional-movement requirement or the mandatory statutory command of Penal Code sections 849(c), 849.5, and 851.6(a) triggered by the November 5, 2024 Detention Certificate. Section 40300.5 authorizes officers to make an arrest; it does not authorize the DMV to disregard the arrest's subsequent statutory reclassification as a detention.

L. Candelaria's Ratification of the Fabricated DS-367

62. Defendant Candelaria's written decision treats the sworn DS-367 executed by Officer Meza-Gonzalez as the dispositive documentary basis for the suspension. Candelaria did not

conduct any independent evaluation of the DS-367 against the objective dashcam evidence contradicting it; she did not resolve the material conflict; and she did not, in her written decision, address any of the specific representations in the DS-367 whose truth was in issue.

63. Candelaria's approach reflects the application of an irrebuttable presumption of official regularity to the DS-367 -- treating the officer's sworn statement as conclusive regardless of what contrary evidence the driver presents. Applied in that manner, the presumption is not a rebuttable evidentiary presumption; it is a rule of dispositive deference that guarantees the DMV prevails whenever a DS-367 exists, without regard to objective contradicting evidence.

64. A rule of dispositive deference, applied to sworn law enforcement statements without meaningful evidentiary check, is incompatible with procedural due process. Vlandis v. Kline, 412 U.S. 441, 446 (1973) (irrebuttable presumptions violate due process where they are not necessarily or universally true and where reasonable alternative means of individualized inquiry are available); Mathews v. Eldridge, 424 U.S. 319, 344-45 (1976) (procedures that eliminate meaningful factual inquiry violate due process where the private interest is substantial).

M. Candelaria's Structural Dual Role as Prosecutor and Adjudicator; The DMV's Own Written Admission

65. Defendant Candelaria's conduct of the January 24, 2025 hearing exemplified the structural dual role condemned by three California Court of Appeal decisions. Candelaria: (a) developed and marshaled the evidentiary record on behalf of the DMV; (b) identified, offered, and admitted the DMV's documentary exhibits; (c) ruled on Plaintiff's objections to the DMV's exhibits and to the DMV's positions; (d) evaluated Plaintiff's testimony and evidence; and (e) issued the ultimate ruling on the merits. Those functions, undertaken by a single officer within a single proceeding, merge the roles of prosecuting advocate and trier of fact within the same official.

66. The dual role is not merely an inference from Candelaria's conduct at the hearing. It is written into the DMV's own Notice of Hearing Appointment (Form DS 2304, Rev. 05/2023), served on Plaintiff before the hearing. That form states, verbatim: "The Hearing Officer will develop the facts and render a final decision on your matter." "Developing facts" is investigative and advocacy conduct; "rendering a final decision" is adjudicative conduct. The DMV's own form confesses the merger.

67. The disclaimer that follows in the same DMV form -- to the effect that the hearing officer "does not advocate on behalf of the Department" -- is contradicted by the DMV's own prior sentence and by the operational reality of the hearing. It cannot cure the structural infirmity that the DMV itself has committed to writing.

N. Three California Appellate Decisions Condemning the DMV Dual-Role Framework Before Plaintiff's Hearing

68. By the date of Plaintiff's January 24, 2025 hearing, three separate published California Court of Appeal decisions had condemned the DMV's dual-role APS hearing framework:

(a) California DUI Lawyers Ass'n v. DMV, 77 Cal.App.5th 517 (2022), decided April 15, 2022 -- more than 33 months before Plaintiff's hearing -- held that the DMV's practice of appointing hearing officers who act simultaneously as advocates for the Department and as decisionmakers on the Department's own case violates due process.

(b) Knudsen v. DMV, 101 Cal.App.5th 186 (2024), decided April 4, 2024 -- more than nine months before Plaintiff's hearing -- reaffirmed and elaborated the constitutional infirmity, and articulated the case-by-case analytic framework for determining whether the dual-role violation is present in a particular hearing.

(c) Clarke v. Gordon, 104 Cal.App.5th 1267 (2024), decided September 12, 2024 -- approximately four months before Plaintiff's hearing -- again condemned the framework, and named Defendant Gordon personally as respondent.

69. The three decisions are cumulative, mutually reinforcing, and controlling on California courts. Their combined force placed the DMV -- and Defendant Gordon personally -- on unambiguous notice of the constitutional infirmity of the dual-role framework in operational effect. See Clarke, 104 Cal.App.5th at 1277 (hearing officer performed dual roles where he "marshalled, identified, and offered into evidence the DMV's exhibits . . . overruled Clarke's objections . . . [and] rigorously cross-examined Clarke"). The pattern of conduct so described is materially indistinguishable from Defendant Candelaria's conduct in Plaintiff's hearing.

70. Federal courts applying California law follow the California appellate decisions on the dual-role framework, and the underlying due-process principles are federal in origin. Withrow v. Larkin, 421 U.S. 35, 46-47 (1975) (combination of investigative and adjudicative functions poses risk of bias sufficient to trigger due process scrutiny).

O. Clarke v. Gordon: Personal Notice to Defendant Gordon

71. Defendant Gordon was named personally, in his official capacity, as the respondent in Clarke v. Gordon, 104 Cal.App.5th 1267 (2024). Gordon received individualized notice of the constitutional infirmity of the DMV's dual-role framework as a matter of published appellate record. The decision was and remains binding on California courts and directly implicates the DMV's operational practice.

72. Notwithstanding Clarke, and notwithstanding California DUI Lawyers Ass'n and Knudsen preceding it, Defendant Gordon has not, on information and belief, implemented

structural reform of the APS hearing process adequate to eliminate the dual-role framework. The framework in the form condemned by the Court of Appeal remained in operational effect at the time of Plaintiff's January 24, 2025 hearing. It remains in operational effect today, causing continuing constitutional injury to Plaintiff and to similarly situated APS respondents.

P. Defendant Gordon's Ongoing Failure to Cure the Structural Bias

73. As Director of the California DMV, Defendant Gordon is charged with the administration and enforcement of the APS suspension scheme (Cal. Veh. Code sections 13353-13389); with supervision of DMV Driver Safety Hearing Officers; and with the promulgation, revision, and implementation of the procedures under which APS hearings are conducted, including Form DS 2304 and its written statement of the hearing officer's role.

74. On information and belief, Defendant Gordon has been on actual notice of the constitutional infirmity of the dual-role APS hearing framework since at least April 2022 (California DUI Lawyers Ass'n) and, in individualized form, since at least September 2024 (Clarke v. Gordon). Gordon has failed to institute (a) restructuring of hearing officer functions to separate prosecutorial and adjudicative roles; (b) revision of Form DS 2304 to eliminate the "develop the facts and render a final decision" language; (c) training or oversight adequate to prevent the recurrence of the dual-role violation; or (d) any other structural reform meaningfully responsive to the appellate condemnations.

75. Defendant Gordon's inaction is not innocent oversight. It is a deliberate policy choice by the responsible state officer, made with actual notice of the underlying constitutional infirmity. It causes continuing, present adverse effects to Plaintiff (see paragraphs 79-84, below) that are traceable to Gordon's decision-making authority and redressable by prospective declaratory and injunctive relief under Ex parte Young.

Q. The Consequences: CDL Suspension, Career Devastation, and the Ongoing SR-22 Encumbrance

76. Defendant Candelaria's February 11, 2025 decision immediately terminated Plaintiff's employment as a Class A CDL truck driver. Plaintiff had, two days before the November 1, 2024 encounter, secured a new professional employment position. That position was extinguished by the suspension. Plaintiff was barred from earning his living in his profession for the full one-year period of the suspension (February 20, 2025 through February 19, 2026).

77. Plaintiff's economic damages are concrete and documented:

(a) Lost regular wages at $33.35 per hour for standard shifts lost since the effective date of suspension, as documented by the Centerline Wage Notice.

(b) Lost premium wages at $50.03 per hour for premium and overtime shifts lost since the effective date of suspension.

(c) Approximate lost base wages of $69,368 for the twelve-month suspension period, plus overtime and premium pay of approximately $15,000, plus lost employment benefits of approximately $12,000.

(d) Continuing career impact and future lost earning capacity of approximately $75,000 associated with the suspension event on Plaintiff's commercial-driving record.

(e) Out-of-pocket expenses of approximately $5,000, including the $125.00 reissue fee under Cal. Veh. Code sections 14904 and 14906, SR-22 premiums, alternative transportation, and administrative expenses.

(f) Damages for emotional distress, humiliation, mental anguish, and reputational injury caused by the arbitrary destruction of Plaintiff's livelihood and professional reputation, in an amount not less than $150,000, together with such further amounts as may be proven at trial. Carey v. Piphus, 435 U.S. 247, 264-65 (1978).

78. The professional-stigma injury has continuing effects. The APS suspension event on Plaintiff's commercial-driving record is a lookback item that materially affects Plaintiff's employability with commercial motor carriers and the terms on which such carriers will offer employment. It carries continuing collateral consequences well beyond the twelve-month formal suspension period.

R. The Ongoing SR-22 Financial-Responsibility Encumbrance

79. The three-year SR-22 filing requirement Defendant Candelaria imposed in her February 11, 2025 decision is a present, continuing, and quantifiable consequence of that decision. The requirement is imposed under California Vehicle Code section 16430, which is triggered as a consequence of specified administrative actions, including the APS suspension challenged here.

80. The SR-22 requirement is not equivalent to the general "proof of financial responsibility" required of every California driver under Cal. Veh. Code section 16020. Section 16020 is a general insurance requirement enforced through a policy or equivalent evidence of coverage; it does not require any special filing with the DMV. An SR-22 certificate filed under section 16430, by contrast, is a high-risk filing that (i) is required only as a consequence of specified adverse administrative actions; (ii) is filed by the insurer directly with the DMV; (iii) requires the insurer to notify the DMV upon lapse or cancellation; (iv) makes the insured a high-risk customer subject to substantially higher premiums; and (v) restricts the pool of carriers

willing to write the policy. The SR-22 is a punitive encumbrance flowing directly from the challenged administrative action, not a generic insurance obligation.

81. Plaintiff has, at all times since the imposition of the SR-22 mandate, complied with it. Plaintiff currently maintains California Auto Insurance Policy No. 11411043872 (Dairyland / Viking Insurance Company of Wisconsin), effective May 18, 2026 through May 18, 2027, with an annual term premium of $281.28. The policy is a California Named Non-Owner Policy. Its Declarations page expressly provides: "A Named Non-Owner Policy provides the selected coverage for the Named Insured while driving non-owned cars. Coverage does not apply when driving a non-owned car available for regular use by the Named Insured."

82. The Named Non-Owner structure of Plaintiff's current policy is what is available to him as a driver subject to the SR-22 mandate imposed by Defendant Candelaria's decision. No carrier will write him an owners-coverage policy on a vehicle he owns while the SR-22 mandate remains in effect. The SR-22 is not a marketing choice; it is a structural encumbrance imposed by the DMV decision under challenge.

83. By the express terms of Defendant Candelaria's decision, the three-year SR-22 mandate runs through approximately February 2028. Plaintiff will remain subject to that encumbrance -- and to premiums, coverage limitations, and administrative burdens flowing from it -- for as long as the suspension imposed by Candelaria's decision continues to encumber his DMV record and until the three-year filing period lapses. That continuing burden is a present adverse effect for Ex parte Young standing purposes, redressable by the prospective relief requested against Defendant Gordon.

84. In addition to the SR-22 mandate, Plaintiff continues to be subject to the reissue conditions imposed by the decision, the collateral consequences of the suspension event on his commercial-driving record, and the risk that any future APS proceeding involving Plaintiff would

be adjudicated under the same dual-role framework absent Gordon's implementation of structural reform. Each of these is a distinct continuing, present adverse effect for Ex parte Young standing purposes.

S. The Related Newanforbi v. Serrato Screening Order: A Coordinate Article III Judge Has Found This Evidentiary Record Sufficient to State a Claim

85. On June 17, 2026, Plaintiff filed a related civil-rights complaint in this District against CHP Dublin Area Commander G. Serrato, arising from Serrato's April 20, 2026 denial of Plaintiff's request for a U-Visa certification -- a denial predicated in part on Serrato's refusal to engage with the same dashcam evidence and Penal Code section 851.6 Detention Certificate at issue here. That action is styled Newanforbi v. Serrato, N.D. Cal. Case No. 4:26-cv-05953-ASK, assigned to United States Magistrate Judge Ambadas S. Krishnan (with plaintiff consent), Oakland Division. It was filed under Plaintiff's prior name variant "Brendan Ngehsi Newanforbi." See paragraph 22, above.

86. On June 29, 2026, Judge Krishnan (a) granted Plaintiff's application to proceed in forma pauperis, (b) screened the complaint pursuant to 28 U.S.C. section 1915(e), and (c) concluded that the operative complaint "is sufficient" to proceed past section 1915 screening. The Court ordered the Clerk to issue summons and directed service by the United States Marshal.

87. A coordinate Article III judge in this District has therefore already concluded, on a substantially overlapping factual record -- including the same dashcam evidence, the same fabrications in the DS-367, and the same section 851.6 Detention Certificate -- that Plaintiff's core allegations state a plausible claim. That determination is not binding on this Court and does not itself resolve the different legal theories asserted here against different defendants; but it is persuasive evidence that the underlying evidentiary record clears the Rule 12(b)(6) and

Iqbal/Twombly plausibility threshold and is not frivolous within the meaning of 28 U.S.C. section 1915(e).

88. Neither the Serrato action nor the Nforbi v. Meza-Gonzalez & Melano action pending in this District asserts a claim against Defendant Candelaria or Defendant Gordon. This action does not overlap in defendants, in causes of action, or in operative legal theory with any of the CHP-officer actions Plaintiff has filed. The pendency of those related actions in this District supports, rather than undermines, the propriety of venue here.

T. Damages Summary and Continuing Injury

89. Plaintiff repeats and re-alleges paragraphs 76-84 above, and further alleges that, as a direct and proximate result of Defendant Candelaria's decision, Plaintiff has suffered and continues to suffer: (a) loss of his commercial-driving privilege and the professional employment that depended on it; (b) lost wages and lost earning capacity; (c) out-of-pocket expenses, including the SR-22 premiums Plaintiff has paid and will continue to pay; (d) reputational injury and continuing commercial-record consequences; (e) emotional distress, humiliation, and mental anguish; and (f) the ongoing coercive impact of an unconstitutional suspension that Plaintiff must comply with on pain of criminal prosecution for driving on a suspended license.

90. As a direct and proximate result of Defendant Gordon's failure to reform the dual-role framework, Plaintiff continues to suffer (a) the SR-22 encumbrance imposed under a decision issued in a constitutionally infirm proceeding; (b) the continuing commercial-driving-record consequences of a suspension imposed under the same infirm framework; and (c) exposure to any future APS proceeding conducted under the same structural framework. Each is a continuing present adverse effect within the meaning of Villa v. Maricopa County, 865 F.3d 1224, 1229 (9th Cir. 2017).

91. Defendant Candelaria's conduct was undertaken with reckless indifference to Plaintiff's clearly established constitutional rights. Presented with a formal Detention Certificate, binding California Supreme Court precedent in Mercer, objective dashcam evidence contradicting the DS-367 in material respects, and three published California Court of Appeal decisions condemning the very structural framework in which she was operating, Defendant Candelaria elected to ignore each of them and issue a decision that ratified constitutionally infirm police conduct and deployed a constitutionally infirm hearing structure. That conduct warrants punitive damages under Smith v. Wade, 461 U.S. 30, 56 (1983).

COUNT I

42 U.S.C. § 1983 -- Fourteenth Amendment --
Procedural Due Process -- Structural Bias
(Against Defendant Candelaria in Her Individual Capacity)

92. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

93. The Due Process Clause of the Fourteenth Amendment requires that state adjudicative deprivations of protected property interests be conducted by a neutral decisionmaker free from structural bias. Withrow v. Larkin, 421 U.S. 35, 46-47 (1975); In re Murchison, 349 U.S. 133, 136 (1955) ("[N]o man can be a judge in his own case."); Caperton v. A.T. Massey Coal Co., 556 U.S. 868, 883-84 (2009). "A fair trial in a fair tribunal is a basic requirement of due process." Murchison, 349 U.S. at 136.

94. Plaintiff's Class A Commercial Driver's License is a constitutionally protected property interest. Bell v. Burson, 402 U.S. 535, 539 (1971); Mackey v. Montrym, 443 U.S. 1, 10-11 (1979). California Vehicle Code section 13353 and its implementing regulations create a

system of state-conferred entitlement to that property interest, subject to deprivation only after adequate process. Cleveland Bd. of Educ. v. Loudermill, 470 U.S. 532, 538-41 (1985).

95. Defendant Candelaria conducted Plaintiff's January 24, 2025 APS hearing within the DMV's dual-role framework -- a framework in which the same officer functions as investigator, prosecuting advocate, and adjudicator within a single proceeding. The dual role is confessed in the DMV's own written Notice of Hearing Appointment (Form DS 2304, Rev. 05/2023) served on Plaintiff: "The Hearing Officer will develop the facts and render a final decision on your matter." Candelaria's conduct at Plaintiff's hearing -- gathering and marshaling evidence, offering the DMV's exhibits, ruling on Plaintiff's objections, and ultimately deciding the merits -- matched that description.

96. The DMV's dual-role framework, and Candelaria's application of it to Plaintiff's proceeding, replicates the structural configuration that three separate California Court of Appeal decisions have condemned as violative of due process:

California DUI Lawyers Ass'n v. DMV, 77 Cal.App.5th 517 (2022);

Knudsen v. DMV, 101 Cal.App.5th 186 (2024);

Clarke v. Gordon, 104 Cal.App.5th 1267 (2024).

97. Defendant Candelaria was on notice of those decisions at the time of Plaintiff's hearing. Plaintiff's December 9, 2024 Notice of Response cited the constitutional framework governing the hearing officer's role. Candelaria proceeded to conduct the hearing under, and to defend her decision under, the dual-role structure the Court of Appeal had condemned.

98. Candelaria's structural role in Plaintiff's proceeding was not merely adjudicative. She

performed functions traditionally associated with advocates, including evidence gathering, ratification of officer testimony as if against a presumption of regularity, and dismissal of agency-issued exculpatory documentation without reasoned analysis. Officials who perform advocate functions do not receive quasi-judicial absolute immunity. Butz v. Economou, 438 U.S. 478, 511-12 (1978); Forrester v. White, 484 U.S. 219, 227-30 (1988); Cleavinger v. Saxner, 474 U.S. 193, 202 (1985); Swift v. California, 384 F.3d 1184, 1191-92 (9th Cir. 2004). To the extent Defendant asserts quasi-judicial immunity, that defense fails on the functional analysis the Ninth Circuit requires.

99. As a direct and proximate result of Defendant Candelaria's violation of the Due Process Clause through her operation within, and application of, the structurally biased dual-role framework, Plaintiff has suffered the damages alleged in paragraphs 76-84 and 89-91 above.

COUNT II

42 U.S.C. § 1983 -- Fourteenth Amendment --
Procedural Due Process -- Denial of a Fair Hearing
(Against Defendant Candelaria in Her Individual Capacity)

100. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

101. Procedural due process requires more than the formal opportunity to be heard: it requires meaningful engagement with the evidence and controlling legal authority. Goldberg v. Kelly, 397 U.S. 254, 267-68 (1970) (adjudicator must consider the evidence and "state the reasons for his determination and indicate the evidence he relied on"); Mathews v. Eldridge, 424 U.S. 319, 344-45 (1976) (procedures that eliminate meaningful factual inquiry violate due process where the private interest is substantial).

102. Defendant Candelaria denied Plaintiff a fair hearing in at least the following respects, each independently sufficient to state a claim:

(a) Candelaria refused to address the November 5, 2024 Penal Code section 851.6 Detention Certificate placed before her in Plaintiff's December 9, 2024 Notice of Response and again at the January 24, 2025 hearing. Her written decision does not mention the Detention Certificate.

(b) Candelaria refused to analyze binding California Supreme Court authority in Mercer v. DMV, 53 Cal.3d 753 (1991), on the observed-volitional-movement requirement for a lawful DUI arrest, notwithstanding Plaintiff's timely written invocation of that authority.

(c) Candelaria refused to engage with the mandatory statutory language of Penal Code sections 849(c) and 849.5 -- "the arrest shall not be deemed an arrest, but a detention only" -- notwithstanding Plaintiff's timely invocation of those provisions.

(d) Candelaria ratified the sworn DS-367 executed by Officer Meza-Gonzalez notwithstanding objective dashcam evidence contradicting it in at least four material respects (see paragraph 29, above), applying what functioned as an irrebuttable presumption of regularity. Vlandis v. Kline, 412 U.S. 441, 446 (1973).

(e) Candelaria issued a conclusory decision that stated, in direct contradiction of the record, that "no evidence was presented to the contrary," when in fact contrary evidence had been presented in writing and at the hearing.

(f) Candelaria failed to identify or apply any of the three California Court of Appeal decisions Plaintiff had cited regarding the constitutional framework in which she was

operating.

103. Each of the failures listed in paragraph 102 falls outside any legitimate exercise of adjudicative discretion. Together, they establish a denial of the reasoned, evidence-based inquiry the Due Process Clause requires. Goldberg, 397 U.S. at 267-68. This is not a case where the driver received a fair hearing and lost on the merits; this is a case where the driver was denied a hearing that engaged with the dispositive evidence and controlling authority he placed before the adjudicator.

104. To the extent Defendant asserts that certain of these failures represent debatable exercises of adjudicative judgment, the answer is that at the pleading stage the question is not conclusive proof but well-pleaded plausibility. Ashcroft v. Iqbal, 556 U.S. 662, 678-79 (2009). The concrete allegations of Candelaria's silence on the Detention Certificate, Mercer, and sections 849(c) and 849.5, together with her written statement that "no evidence was presented to the contrary," are non-conclusory factual allegations directly supporting the denial-of-fair-hearing theory.

105. As a direct and proximate result of the denial of a fair hearing, Plaintiff has suffered the damages alleged in paragraphs 76-84 and 89-91 above.

COUNT III

42 U.S.C. § 1983 -- Fourteenth Amendment --
Procedural Due Process -- Clear Absence of Statutory Jurisdiction
(Against Defendant Candelaria in Her Individual Capacity)

106. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

107. The APS refusal-suspension framework is a creature of statute. California Vehicle Code section 13353(a)(1) predicates a refusal suspension on the driver having been "lawfully arrested for any offense allegedly committed in violation of Section 23140, 23152, or 23154." The "lawful arrest" predicate is not a technicality; it is the statutory foundation of the DMV's adjudicative authority in a refusal case. Mercer v. DMV, 53 Cal.3d 753, 760-62 (1991); Music v. Dep't of Motor Vehicles, 221 Cal.App.3d 841, 850 (1990).

108. Two independent defects destroyed the lawful-arrest predicate of Plaintiff's refusal suspension:

(a) The Mercer defect. No officer observed Plaintiff in volitional movement of the vehicle. On the officers' own account, Plaintiff was parked and asleep when they approached. The Mercer substantive requirement was not met.

(b) The section 849(b)(1) / 851.6 defect. The CHP's November 5, 2024 Detention Certificate reclassified the event as a detention only pursuant to Penal Code section 849(b)(1). Penal Code sections 849(c), 849.5, and 851.6(a) command, in mandatory terms, that the event "shall not be deemed an arrest." The lawful-arrest predicate ceased to exist as a matter of California law before the January 24, 2025 hearing.

109. Defendant Candelaria proceeded with the refusal-suspension hearing anyway. She adjudicated, and sustained a suspension based on, a statutory theory whose triggering predicate did not exist. She thereby acted in the clear absence of statutory jurisdiction to sustain the refusal suspension, within the meaning of Stump v. Sparkman, 435 U.S. 349, 356-57 (1978), which distinguishes acts "in excess of jurisdiction" (protected by absolute judicial immunity) from acts "in the clear absence of all jurisdiction" (unprotected). Because the section 13353(a)(1) triggering predicate was destroyed by operation of California statutory law before the hearing convened,

Candelaria's exercise of adjudicative power over the refusal suspension was in the clear absence of jurisdiction, not merely in excess of it.

110. To the extent Defendant relies on Armondo v. Dep't of Motor Vehicles, 15 Cal.App.4th 1174 (1993), for the proposition that a section 849(b) release does not affect an APS suspension, that reliance fails on multiple grounds:

(a) Armondo involved a section 849(b)(2) release (arrest deemed not proper), not a section 849(b)(1) release ("insufficient grounds for making a criminal complaint"). The two subdivisions have different statutory triggers and, on the argument advanced here, different consequences for the section 13353(a)(1) predicate.

(b) Armondo did not confront a section 851.6 Detention Certificate coupled with the mandatory statutory language of sections 849(c) and 849.5. It did not analyze the argument that the statutory "shall not be deemed an arrest" language destroys the section 13353(a)(1) predicate.

(c) Armondo predates and does not address the three California Court of Appeal decisions condemning the DMV dual-role framework, and it provides no basis for the DMV to ignore either dispositive statutory language or binding subsequent appellate authority.

(d) At the pleading stage, the question is not whether Armondo controls but whether Plaintiff has stated a plausible claim. On the specific facts and statutory arguments alleged here, he has.

111. As a direct and proximate result of Defendant Candelaria's exercise of adjudicative power in the clear absence of statutory jurisdiction, Plaintiff has suffered the damages alleged in paragraphs 76-84 and 89-91 above.

COUNT IV

42 U.S.C. § 1983; 28 U.S.C. §§ 2201, 2202 -- Declaratory Relief

(Against Defendant Gordon in His Official Capacity -- Ex parte Young)

112. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

113. An actual, justiciable controversy exists between Plaintiff and Defendant Gordon, in his official capacity as Director of the California DMV, concerning: (a) the constitutional adequacy of the DMV's APS hearing framework and the dual-role structure written into the DMV's Notice of Hearing Appointment (Form DS 2304); (b) the DMV's continuing enforcement of Plaintiff's suspension and its associated financial-responsibility encumbrances; and (c) the DMV's construction of the section 13353(a)(1) "lawful arrest" predicate as unaffected by a Penal Code section 849(b)(1) release and the mandatory statutory language of sections 849(c), 849.5, and 851.6(a).

114. Pursuant to 28 U.S.C. sections 2201 and 2202, Plaintiff seeks a declaratory judgment against Defendant Gordon that:

(a) The DMV's APS hearing framework, as applied to Plaintiff in APS Case No. 34739340 and as generally implemented under Form DS 2304 (Rev. 05/2023), violates the Due Process Clause of the Fourteenth Amendment;

(b) The continued suspension of Plaintiff's Class A CDL, and the continued imposition of the associated $125.00 reissue fee and three-year SR-22 financial-responsibility requirement, based on a decision issued in a constitutionally infirm proceeding, violates

Plaintiff's Fourteenth Amendment rights;

(c) The DMV's construction of the section 13353(a)(1) "lawful arrest" predicate as unaffected by the mandatory statutory language of Penal Code sections 849(c), 849.5, and 851.6(a), when a section 851.6 Detention Certificate has issued, is contrary to California law and violative of due process;

(d) The DMV's application of an effectively irrebuttable presumption of official regularity to sworn officer statements, notwithstanding objective contradicting evidence in the administrative record, violates procedural due process.

115. Declaratory relief against Defendant Gordon is sought in his official capacity under the Ex parte Young doctrine. The DMV's continuing enforcement of Plaintiff's suspension and associated encumbrances is an ongoing violation of federal law that authorizes prospective declaratory relief notwithstanding the Eleventh Amendment. Verizon Md. Inc. v. Public Serv. Comm'n, 535 U.S. 635, 645-46 (2002); Ex parte Young, 209 U.S. 123, 157-59 (1908).

116. Plaintiff has standing to seek declaratory relief. The SR-22 encumbrance imposed under Defendant Candelaria's decision remains in force and, by its own terms, will remain so through approximately February 2028; the reissue conditions imposed by that decision remain in force; the commercial-driving-record consequences of the suspension remain in force; and Plaintiff remains subject to any future APS proceeding conducted under the same framework. Each is a "continuing, present adverse effect" within the meaning of Villa v. Maricopa County, 865 F.3d 1224, 1229 (9th Cir. 2017), quoting O'Shea v. Littleton, 414 U.S. 488, 496 (1974).

117. To the extent Defendant argues that Plaintiff's harms do not establish continuing, present adverse effects because the twelve-month suspension period has run, that argument fails. The SR-22 mandate, by its express three-year term on the face of Defendant Candelaria's own

decision, extends through approximately February 2028. See paragraphs 79-83, above. That mandate is not equivalent to the general financial-responsibility requirement of Cal. Veh. Code section 16020(a) (see paragraph 80, above); it is a specific punitive encumbrance flowing directly from the challenged administrative action, and it is redressable by prospective relief.

COUNT V

42 U.S.C. § 1983 -- Injunctive Relief

(Against Defendant Gordon in His Official Capacity -- Ex parte Young)

118. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

119. The continued enforcement of Plaintiff's suspension and its associated financial-responsibility encumbrances, and the continued operation of the DMV's dual-role APS hearing framework, constitute an ongoing violation of federal law for which Ex parte Young authorizes prospective injunctive relief against Defendant Gordon in his official capacity.

120. Plaintiff seeks the following injunctive relief against Defendant Gordon:

(a) An order vacating the February 11, 2025 Notification of Findings and Decision in APS Case No. 34739340 (Candelaria) as issued in a constitutionally infirm proceeding;

(b) An order vacating the associated $125.00 reissue fee under Cal. Veh. Code sections 14904 and 14906;

(c) An order vacating the three-year SR-22 financial-responsibility requirement imposed under Cal. Veh. Code section 16430, and directing the DMV to notify the insurance

industry that Plaintiff is no longer subject to the SR-22 filing;

(d) An order directing the DMV to expunge from Plaintiff's driving record all notations arising from the vacated decision and suspension;

(e) An order requiring that any future APS hearing to which Plaintiff may become subject be conducted before a neutral hearing officer whose functions do not include the DMV's investigative, evidence-gathering, or advocacy roles; and

(f) An order requiring the DMV to revise Form DS 2304 to remove language stating that the hearing officer "will develop the facts and render a final decision" and to conform the form to the structural separation required by the Fourteenth Amendment as construed in Withrow v. Larkin, California DUI Lawyers Ass'n v. DMV, Knudsen v. DMV, and Clarke v. Gordon.

121. Plaintiff has no adequate remedy at law for the ongoing constitutional violations. Damages against Defendant Candelaria in her individual capacity cannot vacate the suspension record, cannot lift the SR-22 encumbrance, cannot compel structural reform, and cannot prevent the same infirm framework from being applied to Plaintiff in any future APS proceeding.

122. The balance of equities and the public interest favor injunctive relief. The State has no legitimate interest in maintaining a suspension imposed in a constitutionally infirm proceeding, based on an arrest that both the arresting agency and the prosecuting authority have formally repudiated. The public interest is served by ensuring that state administrative agencies comply with basic due-process requirements when adjudicating the deprivation of citizens' commercial licenses and livelihoods.

123. To the extent Defendant argues that a state-court petition for writ of administrative

mandate under Cal. Code Civ. Proc. section 1094.5 would provide an adequate alternative remedy, that argument fails: (a) section 1983 provides an independent federal cause of action that is not defeated by the availability of state-law remedies (Patsy v. Board of Regents, 457 U.S. 496 (1982)); (b) the state-court mandate remedy would not lift the SR-22 encumbrance flowing from the DMV's operative administrative decision without vacatur of that decision; and (c) the state-court mandate remedy would not compel structural reform of the DMV's APS hearing framework.

QUASI-JUDICIAL ABSOLUTE IMMUNITY IS UNAVAILABLE

124. To the extent Defendant Candelaria asserts quasi-judicial absolute immunity, the defense fails on the functional analysis the Supreme Court and Ninth Circuit require.

125. The Supreme Court has held that the applicability of absolute immunity to non-judicial officers turns on a functional analysis of the nature of the acts performed, not on the title of the officer. Butz v. Economou, 438 U.S. 478, 511-12 (1978); Forrester v. White, 484 U.S. 219, 227-30 (1988). The Ninth Circuit applies this functional test by examining whether the official (1) performed an adjudicative function, (2) within a proceeding with adequate procedural safeguards, and (3) whether there were sufficient checks on the official's authority. Cleavinger v. Saxner, 474 U.S. 193, 202 (1985). Officials performing functions traditionally associated with advocates are not entitled to absolute immunity. Swift v. California, 384 F.3d 1184, 1191-92 (9th Cir. 2004); Miller v. Gammie, 335 F.3d 889, 897 (9th Cir. 2003) (en banc).

126. Defendant Candelaria performed functions traditionally associated with advocates, including (a) evidence gathering on behalf of the DMV; (b) marshaling and offering the DMV's exhibits; (c) ratification of officer testimony as if immune from challenge; and (d) dismissal of agency-issued exculpatory documentation without reasoned analysis. Those are advocate functions, not adjudicative ones. The DMV's own Notice of Hearing Appointment confirms them:

"The Hearing Officer will develop the facts and render a final decision on your matter."

127. To the extent any prior decision has extended blanket quasi-judicial immunity to DMV hearing officers based on title alone -- most notably the out-of-circuit decisions Burrell v. Jackson, 2003 WL 23545858 (E.D. Va. Apr. 21, 2003), aff'd, 96 F. App'x 892 (4th Cir. 2004), and Baker v. Bzydra, 2019 WL 6619348 (D. Conn. Dec. 5, 2019) -- those decisions do not apply the Ninth Circuit's functional test and do not address the specific structural infirmity at issue here: the merger of prosecutorial and adjudicative functions within a single hearing officer. Ninth Circuit doctrine and California appellate authority both foreclose treating that infirmity as immunized by title.

128. Absolute immunity does not extend to acts undertaken in the clear absence of all jurisdiction. Stump v. Sparkman, 435 U.S. 349, 356-57 (1978); Ashelman v. Pope, 793 F.2d 1072, 1075-76 (9th Cir. 1986) (en banc). Defendant Candelaria's exercise of adjudicative power over Plaintiff's refusal-suspension case, when the statutory "lawful arrest" predicate had been destroyed by operation of Penal Code sections 849(c), 849.5, and 851.6(a), was an act in the clear absence of statutory jurisdiction. See Count III, above.

129. Whether Defendant Candelaria's functions in Plaintiff's specific proceeding were advocate functions or adjudicative ones is a fact-sensitive question that cannot be resolved against Plaintiff at the pleading stage. Iqbal, 556 U.S. at 678-79; see also Knudsen, 101 Cal.App.5th at 207 (dual-role analysis "will necessarily depend on the unique facts of each hearing"). Plaintiff's allegations here are not conclusory: they identify Candelaria's specific conduct at the hearing, the DMV's own written admission of the dual role in Form DS 2304, and the parallel Court of Appeal condemnation of the framework.

130. Any qualified immunity defense that Defendant Candelaria may separately assert also fails. The constitutional rights alleged to have been violated -- to a neutral adjudicator, to

reasoned engagement with dispositive evidence, and to be free from adjudicative action taken in clear absence of statutory jurisdiction -- were clearly established well before Plaintiff's January 24, 2025 hearing. Withrow v. Larkin, 421 U.S. 35 (1975); In re Murchison, 349 U.S. 133 (1955); Caperton v. A.T. Massey Coal Co., 556 U.S. 868 (2009); Goldberg v. Kelly, 397 U.S. 254 (1970); Mathews v. Eldridge, 424 U.S. 319 (1976); Vlandis v. Kline, 412 U.S. 441 (1973); Stump v. Sparkman, 435 U.S. 349 (1978).

131. In the alternative, and even if the specific factual application had not been clearly established, an officer can be on notice that her conduct violates the Constitution where the violation is obvious. Hope v. Pelzer, 536 U.S. 730, 741 (2002). Ignoring a formal Detention Certificate, ratifying a demonstrably false sworn statement, and operating within a framework three separate appellate decisions have condemned is not a novel gray area. It falls at the core of the due-process infirmities the Fourteenth Amendment was adopted to prevent.

THE ELEVENTH AMENDMENT DOES NOT BAR THE EX PARTE YOUNG CLAIMS AGAINST DEFENDA

132. To the extent Defendant Gordon asserts Eleventh Amendment immunity, the defense fails. Ex parte Young, 209 U.S. 123 (1908), authorizes suit against state officers in their official capacity for prospective declaratory and injunctive relief to remedy ongoing violations of federal law. Verizon Md. Inc. v. Public Serv. Comm'n, 535 U.S. 635, 645-46 (2002); Idaho v. Coeur d'Alene Tribe, 521 U.S. 261, 276-77 (1997).

133. Plaintiff pleads ongoing violations of federal law traceable to Defendant Gordon: (a) the continuing enforcement of a suspension decision issued in a constitutionally infirm proceeding; (b) the continuing operation of the SR-22 encumbrance imposed under that decision; (c) the continuing operation of the reissue conditions imposed under that decision; and (d) the continuing operation of the dual-role APS hearing framework, of which Gordon has been personally on notice since Clarke v. Gordon (2024) and cumulatively on notice since California

DUI Lawyers Ass'n (2022).

134. Plaintiff has Article III standing to seek prospective relief. To have standing, a plaintiff "must allege either 'continuing, present adverse effects' due to [his] exposure to [d]efendants' past illegal conduct, or a sufficient likelihood that [he] will again be wronged in a similar way." Villa v. Maricopa County, 865 F.3d 1224, 1229 (9th Cir. 2017), quoting O'Shea v. Littleton, 414 U.S. 488, 496 (1974), and City of Los Angeles v. Lyons, 461 U.S. 95, 111 (1983). Plaintiff pleads both.

135. Continuing, present adverse effects. The three-year SR-22 mandate, by the express terms of Defendant Candelaria's own decision, runs through approximately February 2028. Plaintiff currently maintains an active SR-22 policy solely because of that mandate; he currently pays premiums on it; and he currently is disqualified from obtaining owners-coverage insurance on a vehicle he owns solely because of it. The reissue conditions, the commercial-driving-record consequences, and the professional stigma flowing from the suspension are continuing. Each is redressable by the prospective relief requested. See paragraphs 79-84, above.

136. The SR-22 is not a mere generic insurance obligation moot in light of Cal. Veh. Code section 16020(a). Section 16020 requires proof of financial responsibility for owners and drivers as a general matter; the SR-22 under section 16430 is a specific, high-risk, punitive filing imposed only as a consequence of specified adverse administrative actions (see paragraph 80, above). Vacating the suspension decision removes the SR-22; leaving it in place preserves it. The distinction is not theoretical -- Plaintiff pays for it every year.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGWA NFORBI respectfully prays for judgment against Defendants, and each of them, as follows:

A. Against Defendant Candelaria, in Her Individual Capacity

1. Compensatory damages in an amount to be proven at trial, including without limitation lost regular wages, lost premium and overtime wages, lost employment benefits, career impact and future lost earning capacity, out-of-pocket expenses (including the $125.00 reissue fee, SR-22 premiums Plaintiff has paid and will pay, alternative-transportation costs, and administrative expenses), reputational injury, and damages for emotional distress, humiliation, and mental anguish in an amount not less than $150,000, together with all damages proven at trial in excess of these minimum amounts;

2. Punitive damages in an amount sufficient to punish and deter, and in any event not less than $100,000, pursuant to Smith v. Wade, 461 U.S. 30 (1983);

B. Against Defendant Gordon, in His Official Capacity

3. A declaratory judgment under 28 U.S.C. sections 2201 and 2202 in the terms set forth in paragraph 114 above;

4. Injunctive relief in the terms set forth in paragraph 120 above, including vacatur of Defendant Candelaria's February 11, 2025 decision, vacatur of the $125.00 reissue fee, vacatur of the three-year SR-22 requirement, expungement of associated notations from Plaintiff's driving record, and structural reform of the DMV APS hearing framework;

C. As to All Defendants

5. Reasonable attorney's fees and costs pursuant to 42 U.S.C. section 1988;

6. Pre-judgment and post-judgment interest to the fullest extent permitted by law; and

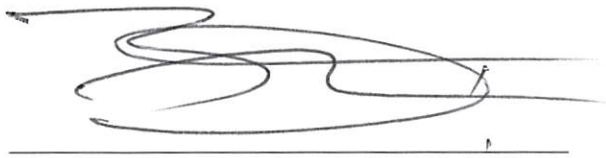
7. Such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Pursuant to Rule 38 of the Federal Rules of Civil Procedure and the Seventh Amendment to the United States Constitution, Plaintiff hereby demands a trial by jury on all issues so triable, including all claims for damages against Defendant Candelaria in her individual capacity.

Dated: August 7, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Pro Per

JS-CAND 44 (Rev. 04-2025)

CIVIL COVER SHEET - for people without lawyers only

RECEIVED
AUG 10 2026
CLERK, U.S. DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

See Civil Local Rule 3-2 (amended April 28, 2025), which requires the filing of a civil cover sheet only by those unrepresented by counsel.

C 26 08272 LJC

I. PLAINTIFF(S)

Ngwa Nforbi, Brendan

County of Residence of First Listed Plaintiff:
Leave blank in cases where United States is plaintiff.

Attorney or Pro Se Litigant Information *(Firm Name, Address, and Telephone Number)*
Brendan Ngwa Nforbi, Pro Se (In Propria Personia), 11155 Cat Tail Drive, Stockton, CA 95209, 209-801-4442, bnn.cdl@gmail.com

DEFENDANT(S)

Diana Candelaria, individually and Steve Gordon Director, CA DMV, in his official capacity, and DOES 1-10

County of Residence of First Listed Defendant:
Use ONLY in cases where United States is plaintiff.

Defendant's Attorney's Name and Contact Information *(if known)*

II. BASIS OF JURISDICTION *(Place an "X" in One Box Only)*

- ☐ U.S. Government Plaintiff
- ☒ Federal Question *(U.S. Government Not a Party)*
- ☐ U.S. Government Defendant
- ☐ Diversity

III. CAUSE OF ACTION

Cite the U.S. Statute under which you are filing: *(Use jurisdictional statutes only for diversity)*
42 USC § 1983; 28 U.S.C. §§ 2201, 2202 (Jurisdiction: 28 USC §§ 1331, 1343(a)(3), (a)(4); U.S. Const. Amend XIV.
Brief description of case: structural bias, lack of jurisdiction in DMV hearing

IV. NATURE OF SUIT *(Place an "X" in One Box Only)*

CONTRACT
- ☐ 110 Insurance
- ☐ 120 Marine
- ☐ 130 Miller Act
- ☐ 140 Negotiable Instrument
- ☐ 150 Recovery of Overpayment & Enforcement of Judgment
- ☐ 151 Medicare Act
- ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans)
- ☐ 153 Recovery of Overpayment of Veteran's Benefits
- ☐ 160 Stockholders' Suits
- ☐ 190 Other Contract
- ☐ 195 Contract Product Liability
- ☐ 196 Franchise

REAL PROPERTY
- ☐ 210 Land Condemnation
- ☐ 220 Foreclosure
- ☐ 230 Rent Lease & Ejectment
- ☐ 240 Torts to Land
- ☐ 245 Tort Product Liability
- ☐ 290 All Other Real Property

TORTS

PERSONAL INJURY
- ☐ 310 Airplane
- ☐ 315 Airplane Product Liability
- ☐ 320 Assault, Libel & Slander
- ☐ 330 Federal Employers' Liability
- ☐ 340 Marine
- ☐ 345 Marine Product Liability
- ☐ 350 Motor Vehicle
- ☐ 355 Motor Vehicle Product Liability
- ☐ 360 Other Personal Injury
- ☐ 362 Personal Injury -Medical Malpractice

PERSONAL INJURY
- ☐ 365 Personal Injury – Product Liability
- ☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability
- ☐ 368 Asbestos Personal Injury Product Liability

PERSONAL PROPERTY
- ☐ 370 Other Fraud
- ☐ 371 Truth in Lending
- ☐ 380 Other Personal Property Damage
- ☐ 385 Property Damage Product Liability

CIVIL RIGHTS
- ☒ 440 Other Civil Rights
- ☐ 441 Voting
- ☐ 442 Employment
- ☐ 443 Housing/ Accommodations
- ☐ 445 Amer. w/Disabilities–Employment
- ☐ 446 Amer. w/Disabilities–Other
- ☐ 448 Education

PRISONER PETITIONS

HABEAS CORPUS
- ☐ 463 Alien Detainee
- ☐ 510 Motions to Vacate Sentence
- ☐ 530 General
- ☐ 535 Death Penalty

OTHER
- ☐ 540 Mandamus & Other
- ☐ 550 Civil Rights
- ☐ 555 Prison Condition
- ☐ 560 Civil Detainee–Conditions of Confinement

FORFEITURE/PENALTY
- ☐ 625 Drug Related Seizure of Property 21 USC § 881
- ☐ 690 Other

LABOR
- ☐ 710 Fair Labor Standards Act
- ☐ 720 Labor/Management Relations
- ☐ 740 Railway Labor Act
- ☐ 751 Family and Medical Leave Act
- ☐ 790 Other Labor Litigation
- ☐ 791 Employee Retirement Income Security Act

IMMIGRATION
- ☐ 462 Naturalization Application
- ☐ 465 Other Immigration Actions

BANKRUPTCY
- ☐ 422 Appeal 28 USC § 158
- ☐ 423 Withdrawal 28 USC § 157

PROPERTY RIGHTS
- ☐ 820 Copyrights
- ☐ 830 Patent
- ☐ 835 Patent–Abbreviated New Drug Application
- ☐ 840 Trademark
- ☐ 880 Defend Trade Secrets Act of 2016

SOCIAL SECURITY
- ☐ 861 HIA (1395ff)
- ☐ 862 Black Lung (923)
- ☐ 863 DIWC/DIWW (405(g))
- ☐ 864 SSID Title XVI
- ☐ 865 RSI (405(g))

FEDERAL TAX SUITS
- ☐ 870 Taxes (U.S. Plaintiff or Defendant)
- ☐ 871 IRS–Third Party 26 U.S.C. § 7609

OTHER STATUTES
- ☐ 375 False Claims Act
- ☐ 376 Qui Tam (31 USC § 3729(a))
- ☐ 400 State Reapportionment
- ☐ 410 Antitrust
- ☐ 430 Banks and Banking
- ☐ 450 Commerce
- ☐ 460 Deportation
- ☐ 470 Racketeer Influenced & Corrupt Organizations
- ☐ 480 Consumer Credit
- ☐ 485 Telephone Consumer Protection Act
- ☐ 490 Cable/Sat TV
- ☐ 850 Securities/Commodities/ Exchange
- ☐ 890 Other Statutory Actions
- ☐ 891 Agricultural Acts
- ☐ 893 Environmental Matters
- ☐ 895 Freedom of Information Act
- ☐ 896 Arbitration
- ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision
- ☐ 950 Constitutionality of State Statutes

V. ORIGIN *(Place an "X" in One Box Only)*

☒ Original Proceeding ☐ Removed from State Court ☐ Remanded from Appellate Court ☐ Reinstated or Reopened ☐ Transferred from Another District ☐ Multidistrict Litigation–Transfer ☐ Multidistrict Litigation–Direct File

VI. FOR DIVERSITY CASES ONLY: CITIZENSHIP OF PRINCIPAL PARTIES

(Place an "X" in One Box for Plaintiff and One Box for Defendant)

Plaintiff	Defendant	
☐	☐	Citizen of California
☐	☐	Citizen of Another State
☐	☐	Citizen or Subject of a Foreign Country
☐	☐	Incorporated or Principal Place of Business In California
☐	☐	Incorporated and Principal Place of Business In Another State
☐	☐	Foreign Nation

VII. REQUESTED IN COMPLAINT

- ☒ Check if the complaint contains a **jury demand.**
- ☒ Check if the complaint contains a **monetary demand**. Amount: $250,000 (minimum)
- ☐ Check if the complaint seeks **class action** status under Fed. R. Civ. P. 23.
- ☐ Check if the complaint seeks a **nationwide injunction** or Administrative Procedure Act vacatur.

VIII. RELATED CASE(S) OR MDL CASE

Provide case name(s), number(s), and presiding judge(s). Ngwa Nforbi v. Serrato, 4:26-cv-05953-ASK, Hon. Krishnan (Oakland)

IX. DIVISIONAL ASSIGNMENT pursuant to Civil Local Rule 3-2

(Place an "X" in One Box Only) ☐ SAN FRANCISCO/OAKLAND ☐ SAN JOSE ☐ EUREKA-MCKINLEYVILLE

DATE 08/07/2026 SIGNATURE OF ATTORNEY OR PRO SE LITIGANT

U.S. District Court

California Northern - San Jose

Receipt Date: Aug 10, 2026 9:49AM

Brendan Ngwa Nforbi
1455 Cat Tail Drive
Stockton, CA 95204

Rcpt. No: 511019864 Trans. Date: Aug 10, 2026 9:49AM Cashier ID: #CHHo (7361)

CD	Purpose	Case/Party/Defendant	Qty	Price	Amt
200	Civil Filing Fee- Non-Prisoner		1	405.00	405.00

CD	Tender			Amt
MO	Money Order	#55300689025	08/7/2026	$405.00

Total Due Prior to Payment:	$405.00
Total Tendered:	$405.00
Total Cash Received:	$0.00

Comments: 26-CV-08272-LJC

Only when the bank clears the check, money order, or verifies credit of funds, is the fee or debt officially paid or discharged. A $53 fee will be charged for a returned check.